

SENATE No. 1563

The Commonwealth of Massachusetts

PRESENTED BY:

Robyn K. Kennedy

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prioritizing patient access to care.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>1/22/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/27/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>2/12/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/12/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>2/19/2025</i>
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>4/9/2025</i>
<i>Adam Gómez</i>	<i>Hampden</i>	<i>9/18/2025</i>
<i>Joan B. Lovely</i>	<i>Second Essex</i>	<i>9/18/2025</i>

SENATE No. 1563

By Ms. Kennedy, a petition (accompanied by bill, Senate, No. 1563) of Robyn K. Kennedy, Rebecca L. Rausch, Joanne M. Comerford, Susannah M. Whipps and other members of the General Court for legislation to prioritize patient access to care based upon the professional judgment of the physician.. Public Health.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prioritizing patient access to care.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 12N of Chapter 112 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out, in lines 1 through 9, the words “no abortion
3 may be performed except by a physician, and only if in the best medical judgment of the
4 physician it is: (i) necessary to preserve the life of the patient; (ii) necessary to preserve the
5 patient's physical or mental health; (iii) warranted because of a lethal fetal anomaly or diagnosis;
6 or (iv) warranted because of a grave fetal diagnosis that indicates that the fetus is incompatible
7 with sustained life outside of the uterus without extraordinary medical interventions.” and
8 inserting in place thereof the following words:- an abortion may be performed when based upon
9 the professional judgment of the physician.

10 SECTION 2. Section 12N1/2 of said chapter 112, as so appearing in the 2022 Official
11 Edition, is hereby amended by striking out, in lines 1 through 4 the words “(a) Each circumstance
12 permitting an abortion for a pregnancy that has existed for 24 weeks or more under section 12N

13 shall be considered independently by a treating physician and a patient or the patient's health care
14 proxy.”

15 SECTION 3. Said section 12N1/2 of said chapter 112, as so appearing, is hereby further
16 amended by striking out, in line 5, the words “a determination by” and inserting in place thereof
17 the following words:- “the professional judgment of”.

18 SECTION 4. Said section 12N1/2 of said chapter 112, as so appearing, is hereby further
19 amended by striking out subsection (b).

20 SECTION 5. Section 12P of said chapter 112, as so appearing in the 2022 Official
21 Edition, is hereby further amended by striking out the second paragraph.